

IN DISTRICT COURT

JUDICIAL DISTRICT

Case No.

COMPLAINT FOR DIVORCE (With Children)

- Complaint/May 2023

4. Plaintiff and Defendant were married on _____ (date), at _____ (city), _____ (state) and have been married ever since.

5. (Choose one)

☐ Neither Plaintiff nor Defendant is currently in the Armed Services of the United States of America or its allies.

OR

☐ (Choose all that apply) ☐ Plaintiff/ ☐ Defendant is/are currently in the Armed Services of the United States of America or its allies but is not/are not currently deployed or notified of deployment.

6. Irreconcilable differences have arisen between Plaintiff and Defendant making continuation of the marriage impossible.

7. Plaintiff and Defendant have minor children together, namely:

a. Minor Child's Initials: _____ Year of Birth: _____
Last 4 Digits of Social Security Number: XXX-XX-_____
Address: _____

b. Minor Child's Initials: _____ Year of Birth: _____
Last 4 Digits of Social Security Number: XXX-XX-_____
Address: _____

c. Minor Child's Initials: _____ Year of Birth: _____
Last 4 Digits of Social Security Number: XXX-XX-_____
Address: _____

☐ (Choose if applicable) Additional sheets are attached for Paragraph 7.

8. It is in the best interests of the minor child(ren) that residential responsibility is granted as follows (*choose one*):

☐ Shared equally between the Plaintiff and the Defendant.

OR

☐ Primary residential responsibility granted to the Plaintiff, subject to the Defendant's reasonable parenting time.

OR

☐ Primary residential responsibility granted to the Defendant, subject to the Plaintiff's reasonable parenting time.

9. (*Choose one*)

☐ Neither Plaintiff nor Defendant is pregnant.

OR

☐ (*Choose one*) ☐Plaintiff/ ☐Defendant is pregnant. However, the (*choose one*) ☐Plaintiff/
☐Defendant is not the father, and the child is not at issue in this proceeding.

10. This Court has jurisdiction to determine parenting rights and responsibilities and decision making of the minor child(ren) pursuant to North Dakota Century Code Section 14-14.1-12 because (*choose and complete one; Paragraph 10 continues on next page*):

☐ The child(ren) has/have lived in North Dakota with a parent or person acting as a parent for at least six consecutive months immediately before the start of this divorce proceeding. If a child is less than six months old, the child has lived in North Dakota with a parent or person acting as a parent since their birth.

Name of parent or person acting as a parent: _____

Relationship to child(ren): _____

OR

- ☐ North Dakota was the home state of the child(ren) within six months of the start of this proceeding, and one parent continues to reside in North Dakota.

Name of parent residing in North Dakota: _____

- 11.** This divorce proceeding will affect the custody of the minor child(ren) of the marriage.

The following information is required by North Dakota Century Code Section 14-14.1-20:

- a.** Within the past five (5) years, the child(ren) has/have lived at the following addresses:

Child's Initials	Address (street, city, state, zip code)	Date From	Date To

- b.** The names and current addresses of the persons with whom the child(ren) has/have lived in the past five (5) years are as follows:

Child's Initials	Name of Person(s)	Current Address (street, city, state, zip code)

c. (Choose one)

☐ Plaintiff has not participated, as a party or witness or in any other capacity, in any other proceeding concerning the custody of or visitation with the child(ren).

OR

☐ Plaintiff has participated in the following proceeding(s) concerning the child(ren) as a party or witness, or in another capacity concerning the custody of or visitation with the child(ren):

Name of Court	State	Case Number	Date of Determination

d. (Choose one; Paragraph 11(d) continues on next page)

☐ Plaintiff does not know of any proceeding that could affect this current divorce proceeding, including proceedings for enforcement and proceedings relating to domestic violence, protective orders, termination of parental rights, adoptions, neglect, abuse, deprivation, guardianship, or paternity.

OR

☐ Plaintiff knows of the following proceeding(s) that could affect this current divorce proceeding, including proceedings for enforcement and proceedings relating to domestic

violence, protective orders, termination of parental rights, adoptions, neglect, abuse, deprivation, guardianship, or paternity.

Name of Court	State	Case Number	Type of proceeding

e. *(Choose one)*

- ☐ Plaintiff does not know of any person who is not a party to this divorce proceeding who has physical custody of the child(ren) or claims rights of legal custody or physical custody of, or visitation with, the child(ren).

OR

- ☐ Plaintiff knows of the following person(s) who is/are not a party to this divorce proceeding who has physical custody of the child(ren) or claims rights of legal custody of physical custody of, or visitation with, the child(ren).

Name of Person(s)	Address (street, city, state, zip code)

- ☐ *(Choose if applicable)* Additional sheets are attached for Paragraph 11(e).

12. (Choose one)

☐ (Choose one) ☐Plaintiff/ ☐Defendant is an able-bodied person and is able to contribute toward the support of the minor child(ren).

OR

☐ There is a child support order already in existence. The case number is _____.

13. Plaintiff and Defendant are owners of property, which should be divided by the Court and an equitable portion awarded to each party.

14. Plaintiff and Defendant have accumulated a certain amount of debt throughout the marriage, which should be divided, and an equitable portion assessed to each party.

15. (Choose one)

☐ Plaintiff wants to restore their name.

OR

☐ Plaintiff does not want to restore their name.

WHEREFORE, Plaintiff asks for judgment as follows:

16. The bonds of matrimony presently existing between Plaintiff and Defendant be wholly dissolved and that Plaintiff be granted an absolute decree of divorce from Defendant.

17. For residential responsibility and parenting time that serve the minor child(ren)'s best interests.

18. For child support obligations, if requested in Paragraph 12 above, that serve the minor child(ren)'s best interests, including those related to traditional child support, dependent medical and dental insurance coverage, and contribution to the child(ren)'s uninsured dental and medical expenses.

19. For a fair and equitable division of the assets and liabilities accumulated and incurred by the parties.

20. For such further and additional relief as this Court may deem just and proper.

21. I verify, under penalty of perjury under the law of North Dakota, that I am the Plaintiff in the above-entitled divorce action; that I have read the Complaint for Divorce and know the contents thereof and that the same is true and correct, except as to matters stated therein upon information and belief as to those matters I state that I believe them to be true and correct.

Signed on _____ (date) in _____ (city),
_____ (county), _____ (state), _____ (country).

_____, Plaintiff
Signature of Plaintiff

Typed or Printed Name of Plaintiff

Address

City State Zip Code

Telephone Number

Email Address